

1204-05.) Applicant failed to provide adequate notice of the hearing date. (See Code Civ. Proc. §§1005, subd. (b) and 1010.6, subd. (a)(3)(B).) The proof of service indicates that notice and the moving documents were mailed on July 30, 2026. However, July 22, 2026, was the last day to timely serve notice by mail of the August 18, 2026, hearing.

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In The Matter of The Bressler Irrevocable Trust

26PR000097

VERIFIED PETITION TO COMPEL TRUST ACCOUNTING; TO COMPEL ACCOUNTING OF ACTS OF ATTORNEY-IN-FACT; FOR BREACH OF FIDUCIARY DUTY AND SURCHARGE; FOR REMOVAL OF TRUSTEE; AND FOR DOUBLE DAMAGES UNDER PROBATE CODE § 859

APPEARANCE REQUIRED for case management hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Marylouise Avist v. Nathan Fite et al

25CV000794

MOTION FOR LEAVE OF COURT TO FILE A SECOND AMENDED COMPLAINT

TENTATIVE RULING: The Court appoints Daniel DeWeese as Special Administrator of the Estate of Marylouise Avist, exclusively for purposes of prosecuting the instant action, and in that capacity orders that he be substituted in as Plaintiff of record in this action.

The Motion is GRANTED IN PART. The request to deem the Second Amended Complaint filed is DENIED. Mr. DeWeese is GRANTED 10 Court days’ leave to file a Second Amended Complaint in substantially the same form as that attached as Exhibit 6 to the Declaration of Matthew Russell filed May 28, 2026.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL BACKGROUND

On April 15, 2025, Marylouise Avist commenced the instant action by filing a complaint asserting claims sounding in negligence and premises liability against the defendants. On April 23, 2025, Ms. Avist filed a First Amended Complaint (FAC). On April 10, 2026, Ms. Avist filed a Motion for Leave to File a Second Amended Complaint (April 10 Motion re: SAC), and set

hearing on that motion for May 13, 2026. On May 8, 2026, counsel for Ms. Avist filed a Notice informing the Court that Ms. Avist passed away on April 13, 2025. In light of this Notice, the Court continued, to August 18, 2026, the May 13, 2026, hearing on the April 10 Motion re: SAC. (See Minute Order of May 13, 2026.)

On May 28, 2026, a second Motion for Leave of Court to File a Second Amended Complaint (May 28 Motion re: SAC) was filed on behalf of Ms. Avist's Estate by purported successor in interest Daniel Deweese.

B. SUBSTITUTION OF PLAINTIFF

"On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.) "The court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." (Code Civ. Proc., § 377.33.) "The references [in Code Civ. Proc., § 377.33] to appointment of the successor in interest as a special administrator or guardian ad litem are intended to recognize that there may be a need to impose fiduciary duties on the successor to protect the interests of other potential beneficiaries." (Law Revision Commission Comments to Stats 1992 ch 178 § 20 (SB 1496).) "If the circumstances of the estate require the immediate appointment of a personal representative, the court may appoint a special administrator to exercise any powers that may be appropriate under the circumstances for the preservation of the estate." (Prob. Code, § 8540.)

The Court finds that Daniel DeWeese has satisfied the requirements of Code of Civil Procedure section 377.32. (See Declaration of Daniel DeWeese.) The Court further finds that immediate appointment of Mr. DeWeese as special administrator of the Estate of Marylouise Avist, for purposes of prosecuting the instant action, is necessary to preserve her claims, a putative asset of the Estate.

The Court, therefore, appoints Daniel DeWeese as Special Administrator of the Estate of Marylouise Avist, exclusively for purposes of prosecuting the instant action, and in that capacity orders that he be substituted in as Plaintiff of record in the action. (See Code Civ. Proc., § 377.33.)

C. MOTION TO FILE SECOND AMENDED COMPLAINT

1. The April 10 Motion re: SAC is MOOT

The Court finds, from the circumstances discussed above, and the redundant nature of the two pending motions, that the April 10 Motion re: SAC is MOOT.

2. The May 28 Motion re: SAC is GRANTED

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a).) Similarly, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

The Court finds that the moving papers satisfy the procedural requirements of California Rules of Court, rule 3.1324.

Good cause appearing, and no opposition having been filed, the Motion for leave to file the proposed SAC is GRANTED.

For file management reasons, the Court does not permit attachments to other filings to be deemed operative pleadings. Thus, the request that the proposed Second Amended Complaint be deemed filed is DENIED.

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Jeffrey Fallin v. Thomas Orlando et al

25CV002076

DEMURRER TO CROSS-COMPLAINANT

APPEARANCE REQUIRED

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In The Matter of Michelle N. Cardozo

26CV001350

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.